

The following sample warrant and affidavit for ISP records, including content, is a redacted version of a warrant and affidavit prepared by King County (Washington) Senior Deputy Prosecuting Attorney Ivan Orton. Reach Mr. Orton at ivan.orton@metrokc.gov or (206) 296-9082.

KING COUNTY SUPERIOR COURT

STATE OF WASHINGTON)
) SS.
COUNTY OF KING)

NO.

SEARCH WARRANT

TO ANY PEACE OFFICER IN THE STATE OF WASHINGTON:

Upon the sworn complaint made before me there is probable cause to believe that the crimes of **[insert crimes and RCW]** have been committed and that evidence of a crime; or contraband, the fruits of a crime, or things otherwise criminally possessed; or weapons or other things by means of which a crime has been committed or reasonably appears about to be committed; or a person for whose arrest there is probable cause, or who is unlawfully restrained is/are concealed in or on certain premises, vehicles or persons. The sworn complaint is attached to this order and is hereby incorporated by this reference.

YOU ARE COMMANDED TO:

1. Search, within 5 days of this date, the premises, vehicle or person described as follows:

Comcast Cable Communications
3 Executive Campus, 5th Floor
Cherry Hill, NJ 08002
FAX 856 317-7319
In the possession or custody of Sharma Austin, Legal Analyst

2. Seize, if located, the following property and provide the information in electronic format:

- A. **All stored electronic communications and other electronic files associated with IP addresses 24.XXX.XXX.1 and 24.XXX.XXX.2 between 01-17-04 and 02-12-04.**
- B. **All connection logs and records between 01-17-04 and 02-12-04 of user activity associated with IP addresses 24.XXX.XXX.1 and 24.XXX.XXX.2, including:**

Connection date and time;

Disconnect date and time;

Method of connection (e.g., telnet, ftp, http);

Data transfer volume;

Username associated with the connection;

Telephone caller identification records;

Other connection information, such as the Internet Protocol address of the connection source;

Connection information for other computers to which the user of the above-referenced accounts connected, by any means, during the connection period, including the destination IP address, connection time and date, disconnect time and date, method of connection to the destination computer, and all other information related to the connection from IP addresses 24.XXX.XXX.1 and 24.XXX.XXX.2 ;

- C. Any other records related to the above-referenced names and user names, including correspondence, billing records, records of contact by any person or entity about the above-referenced names and user names, and any other subscriber information accessing IP Address 24.XXX.XXX.1 at the following dates/times:**

Date 18:39:16 PST
Date 18:38:15 PST
Date 03:41:03 PST

and IP address 24.XXX.XXX.2 at the following date and time:

Date 07:14:13 PST

3. Promptly return this warrant to me or the clerk of the court; the return must include an inventory of all property seized. A copy of the warrant and a receipt for the property taken shall be given to the person from whom or from whose premises property is taken. If no person is found in possession, a copy and receipt shall be conspicuously posted at the place where the property is found.
4. The warrant may be executed by faxing a copy of the warrant to Comcast Cable Communications.

Date/Time: _____

JUDGE _____
Printed or Typed Name of Judge

() This warrant was issued by the above judge, pursuant to the telephonic warrant procedure authorized by JCrR 2.10 and CrR 2.3, on _____, 20 ____ at _____.M.

Printed or Typed Name of Peace
Officer, Agency and Personnel Number

Signature of Peace Officer Authorized
to Affix Judge's Signature to Warrant

STATE OF WASHINGTON) NO.
 : ss
COUNTY OF KING) AFFIDAVIT FOR SEARCH WARRANT
 XXXXX POLICE CASE XX-XXXXX

(XX) Evidence of the crime(s) of : **[Insert crime and RCW]**

() Contraband, the fruits of a crime, or things otherwise criminally possessed, and

() Weapons or other things by means of which a crime has been committed or reasonably appears about to be committed, and

() A person for whose arrest there is probable cause, or who is unlawfully restrained

**In the possession or custody of Sharma Austin, Legal Analyst
Comcast Cable Communications
3 Executive Campus, 5th Floor
Cherry Hill, NJ 08002
FAX 856 317-7319**

That I have been a Police Officer for over ten years and I am currently with the XXXXX Police Department assigned to the patrol division. I have completed the Washington State Basic Police Academy at the Washington State Criminal Justice Training Center in Burien. I was trained to investigate domestic violence while at the academy. Every year since the academy, I have continued my education on domestic violence by attending in-house training hosted by the XXXXX DV unit. I have attended the annual DV conference for several years and have been involved in multiple domestic violence investigations. In my training and experience a victim can be targeted or stalked by the suspect in many ways. Over the past several years there has been an increase in the use of computer/Internet electronic mail as a means of harassment.

In this particular case the victim has been receiving multiple emails for the past four months. She has received XX emails between Beginning Date and Ending Date. She believes the emails are coming from her ex-husband. There is a protection order prohibiting any contact by the suspect. These emails are in violation of the court order.

On Date, I was dispatched to a reported court order violation. I contacted the victim, Victim, at her place of employment. Victim had received multiple emails on her computer at work that were disturbing to her. Victim has received XX emails since Beginning Date, and believes they are from her ex-husband, Suspect. There is a valid protection order that has been served, listing Suspect as the respondent and Victim as the petitioner. The "Order for Protection-DV" is court number XXXXX. The order is out of Superior Court of Washington for King County and was issued by Judge Name on Date of Order. All of the emails in question were received during a time when the protection order was effective.

Victim is concerned for her safety because Suspect continues to find ways of contacting her. Victim said that Suspect once held a gun to her head during their relationship and that he is very mentally unstable. He recently has been authorized to get his guns out of safekeeping at the XXXXX Police Department. He was previously given a probationary sentence for a violation of this protection order. Victim relocated her job and home after her separation and divorce from Suspect. Suspect has managed to track down her place of employment and has recently called her at work. This violation of the protection order case has been filed by the Prosecutor's Office and is still pending.

Victim is now concerned about the emails she has been receiving at work. She is certain it is Suspect sending the emails, although he is using various names as the sender. Each email contains references that are only relevant to Victim and Suspect. For example, in eight of the emails sent to Victim, the sender references "Singer" and "Song" in the subject or address lines. This was Victim and Suspect's wedding song. The emails start in Beginning Date and the latest was sent Ending Date. In Beginning Month they were separated and in the past month the divorce was finalized. The latest emails have said, "email content." Before the divorce, the emails said, "email content," and "email content." It is apparent to Victim that the sender is Suspect and he was trying to reconcile on the break-up or work out issues for the separation of property. His latest emails have appeared to address the divorce, "email content."

There is another disturbing aspect in the emails that points to Suspect as the sender. Victim is recently living with a friend named Friend. Friend works for Friend's Employer in a building next to Suspect's. Suspect works for the Suspect's Employer. Victim has received five emails since Date from sender, Friend@domain. Victim recognized the verbiage in the emails to be from Suspect, but does not know how he knew Friend's name. Victim called Friend and verified this was not his email account. It appears that Suspect has created this email identification and address to send Victim messages. The real Friend sent an email to the above email address and attempted to confront the person using his name. It is disturbing to Victim that Suspect knows who she is living with and she is fearful for her safety, as well as for Friend's. Victim said that Friend and Suspect have confronted each other in the parking lot for their buildings. She still does not know how Suspect identified Friend. Friend does know what car Suspect drives. Friend was

able to verify Suspect's car was in the parking lot at the time of several of these disturbing emails to Victim. Because of this, Victim believes Suspect has sent some of these emails from a computer while at work at Suspect's employer. Victim said that Suspect works regular daytime hours on the computer system for Suspect's Employer.

I believe that Suspect has sent all of these emails to Victim and that he has violated the protection order that has been in effect since Order Date. Suspect has two counts of violating the order already pending with the Prosecutor's Office. He does not appear to have respect for the Judge's order and continues to violate it. I believe that Suspect is using various email accounts in an attempt to hide his identity and still violate the order.

The Internet is a global computer network, which electronically connects computers and allows communications and transfers of data and information across state and national boundaries. To gain access to the Internet, an individual utilizes an Internet Service Provider (ISP). These ISPs are available worldwide. When an individual communicates through the Internet, the individual is assigned an Internet Protocol (IP) address. That IP address, which identifies the individual user by account and ISP, is contained in communications made by the user over the Internet. IP addresses consist of four numbers, each less than 256, separated by periods (dots). The numbers also correspond to domain names.

An Internet user who connects to the Internet through a dial-up phone connection to an Internet Service Provider is assigned a particular IP address for that session only, from the pool of IP addresses permanently assigned the Service Provider. Service Providers routinely keep records correlating these temporary IP addresses to the customer account using their service. On many occasions the Service Provider keeps CallerID record of the phone number used for each connection to the Service Provider. An Internet user who connects to the Internet through a broadband connection, such as a DSL or cable connection, is often assigned an IP address for a longer period than just one connection. Similar records are maintained of the customer assignments of these longer duration IP addresses.

The header information for the emails shows most originate at an IP address owned by broadband provider Comcast Communications. Five originated with Hushmail, an anonymizing remailer. (When mail is sent through an anonymizing remailer, the remailer strips the header information that would otherwise disclose the source of the email.)

Hushmail is a Canadian company. Obtaining records from Hushmail requires the use of provisions of treaties between the United States and Canada. Comcast is a United States company. Comcast maintains log files of which of their users were assigned particular IP addresses at particular dates and times.

Based on the above information, I believe evidence of the crime of Violation of a DV Court Order and Identify Theft would be found at Comcast Communications¹

I request a warrant be issued to seize the following records of Comcast:

- A. All stored electronic communications and other electronic files associated with IP addresses 24.XXX.XXX.1 and 24.XXX.XXX.2 between Beginning Date and Ending Date.**
- B. All connection logs and records between Beginning Date and Ending Date of user activity associated with IP addresses 24.XXX.XXX.1 and 24.XXX.XXX.2, including:**
 - Connection date and time;**
 - Disconnect date and time;**
 - Method of connection (e.g., telnet, ftp, http);**
 - Data transfer volume;**
 - Username associated with the connection;**
 - Telephone caller identification records;**
 - Other connection information, such as the Internet Protocol address of the connection source;**
 - Connection information for other computers to which the user of the above-referenced accounts connected, by any means, during the connection period, including the destination IP address, connection time and date, disconnect time and date, method of connection to the destination computer, and all other information related to the connection from IP addresses 24.XXX.XXX.1 and 24.XXX.XXX.2;**
- C. Any other records related to the above-referenced names and user names, including correspondence, billing records, records of contact by any person or entity about the above-referenced names and user names, and any other subscriber information accessing IP Address 24.XXX.XXX.1 at the following dates/times:**
 - Date 18:39:16 PST
 - Date 18:38:15 PST
 - Date 23:41:03 PST

and IP address 24.XXX.XXX.2 at the following date and time:

 - Date 07:14:13 PST

Comcast will accept service of a warrant by fax. I request permission to serve this warrant on Comcast by faxing it from XXXXX, Washington. The Washington Court of Appeals has approved the practice of executing a search warrant for records held by a third party by serving that party with the warrant and

¹ Evidence would also be found in Hushmail's records. Because of the lengthy delays associated with working with the State Department for Hushmail records, we are not seeking a warrant at this time for Hushmail records.

allowing the third party to produce the covered records at a later date. *State v. Kern*, 81 Wn. App. 308 (1996). Furthermore, the Eighth U.S. Circuit Court of Appeals has upheld service by fax. *U.S. v. Bach*, No. 02-1238 (8th Cir. 2002).

Affiant

XXXX P.D. Officer #XXXX

Agency, Title and Personnel Number

Subscribed and Sworn to before me this _____
day of _____, 2004.

Judge